

Part 2A

Inspection and Repair of Building

(Part 2A added 16 of 2011 s. 20)

(Format changes—E.R. 2 of 2012)

30A. Application

This Part does not apply to a domestic building not exceeding 3 storeys in height.

30B. Obligation on owners to carry out prescribed inspection and prescribed repair in respect of buildings

- (1) This section applies to any building aged 30 years or above.
- (2) The age of a building mentioned in subsection (1) is to be determined by the Building Authority—
 - (a) if an occupation permit in respect of the building is issued by the Building Authority under section 21(2), according to the date the occupation permit is issued; and
 - (b) in any other case, according to the evidence available to the Building Authority.
- (3) The Building Authority may by notice in writing served on any owner of a building require a prescribed inspection and, if necessary, prescribed repair in respect of the common parts of the building to be carried out within a specified time.
- (4) If an external wall of a building is not in the common parts of the building, the Building Authority may by notice in writing served on the owner of the external wall require a prescribed inspection and, if necessary, prescribed repair in respect of the external wall to be carried out within a specified time.

- (5) Without limiting subsections (3) and (4), the Building Authority may by notice in writing served on an owner of a building require a prescribed inspection and, if necessary, prescribed repair in respect of any projection as prescribed in the regulations that is connected to that owner's premises in the building and is occupied or used by that owner or any occupier of that premises to be carried out within a specified time.
- (6) Without limiting subsections (3) and (4), if a signboard is erected on a building, the Building Authority may by notice in writing served on—
- (a) the person for whom the signboard is erected;
 - (b) if that person cannot be found, the person who would receive any rent or other money consideration if the signboard were hired out or the person who is receiving such rent or money consideration; or
 - (c) if the persons referred to in paragraphs (a) and (b) cannot be found, the owner of the premises in the building on which the signboard is erected,
- require a prescribed inspection and, if necessary, prescribed repair in respect of the signboard to be carried out within a specified time.
- (7) In a notice served under subsection (3), (4), (5) or (6), the Building Authority may specify for a relevant part of a building—
- (a) the date by which a registered inspector must be appointed to carry out a prescribed inspection in respect of that part of the building;
 - (b) the date by which a prescribed inspection in respect of that part of the building is required to be completed; and

- (c) the date by which a prescribed repair in respect of that part of the building, as may be required under subsection (8), is required to be completed.
- (8) If a prescribed inspection in respect of a relevant part of a building shows that that part of the building has been rendered dangerous, or is liable to become dangerous, the owner on whom the notice is served must carry out a prescribed repair in respect of that part of the building, in accordance with this Ordinance, to render that part of the building safe.
- (9) The Building Authority may cause a notice served under subsection (3), (4), (5) or (6) to be registered by memorial in the Land Registry against the building to which the notice relates.
- (10) If a notice served under subsection (3), (4), (5) or (6) is not complied with, the Building Authority may, without further notification, carry out or cause to be carried out—
 - (a) any inspection in respect of the common parts, external wall, projection or signboard of the building that the Building Authority considers necessary for the purpose of that notice; and
 - (b) any repair works that the Building Authority considers necessary or expedient to render the building safe, having had regard to the findings of an inspection in respect of the building, whether the inspection is carried out or caused to be carried out by the Building Authority under paragraph (a), or by a registered inspector appointed under section 30D(1)(a).
- (11) The cost of the inspection and repair works that the Building Authority has carried out or has caused to be carried out under subsection (10) is recoverable as a debt due to the Government from— (*Amended 24 of 2012 s. 12*)

- (a) if the notice served under subsection (3), (4), (5) or (6) has not been registered with the Land Registry under subsection (9), the person on whom the notice is served; or
 - (b) if the notice served under subsection (3), (4), (5) or (6) has been registered with the Land Registry under subsection (9), the person who is the owner of the relevant part of the building—
 - (i) as at the date of completion of the inspection if the Building Authority has carried out or has caused to be carried out the inspection mentioned in subsection (10)(a) only; or
 - (ii) as at the date of completion of the repair works mentioned in subsection (10)(b) if the Building Authority has carried out or has caused to be carried out the repair works, whether or not the Building Authority has also carried out or has also caused to be carried out the inspection mentioned in subsection (10)(a).
- (12) After a notice under subsection (3), (4), (5) or (6) (the *preceding notice*) has been complied with, a fresh notice in respect of the same part of the building must not be served under that subsection before the expiry of 10 years after the date of the preceding notice.
- (13) In this section, a reference to an inspection or repair of any part of a building does not include an inspection or repair of the windows in the building.

30C. Obligation on owners to carry out prescribed inspection and prescribed repair in respect of windows

- (1) This section applies to any building aged 10 years or above.

- (2) The age of a building mentioned in subsection (1) is to be determined by the Building Authority—
 - (a) if an occupation permit in respect of the building is issued by the Building Authority under section 21(2), according to the date the occupation permit is issued; and
 - (b) in any other case, according to the evidence available to the Building Authority.
- (3) Subject to subsection (4), the Building Authority may by notice in writing served on any owner of a building require a prescribed inspection and, if necessary, prescribed repair in respect of the windows in the building to be carried out within a specified time.
- (4) If any window in a building is exclusively used by an owner of the building or any occupier of that owner's premises, the Building Authority may by notice in writing served only on that owner require a prescribed inspection and, if necessary, prescribed repair in respect of the window to be carried out within a specified time.
- (5) In a notice served under subsection (3) or (4), the Building Authority may specify for a window in a building—
 - (a) the date by which a qualified person must be appointed to carry out a prescribed inspection in respect of that window;
 - (b) the date by which a prescribed inspection in respect of that window is required to be completed; and
 - (c) the date by which a prescribed repair in respect of that window, as may be required under subsection (6), is required to be completed.
- (6) If a prescribed inspection in respect of a window in a building shows that the window has been rendered dangerous, or is

liable to become dangerous, the owner on whom the notice is served must carry out a prescribed repair in respect of the window, in accordance with this Ordinance, to render the window safe.

- (7) The Building Authority may cause a notice served under subsection (3) or (4) to be registered by memorial in the Land Registry against the building to which the notice relates.
- (8) If a notice served under subsection (3) or (4) is not complied with, the Building Authority may, without further notification, carry out or cause to be carried out—
 - (a) any inspection in respect of the window concerned that the Building Authority considers necessary for the purpose of that notice; and
 - (b) any repair works that the Building Authority considers necessary or expedient to render the window safe, having had regard to the findings of an inspection in respect of the window, whether the inspection is carried out or caused to be carried out by the Building Authority under paragraph (a), or by a qualified person appointed under section 30E(1)(a).
- (9) The cost of the inspection and repair works that the Building Authority has carried out or has caused to be carried out under subsection (8) is recoverable as a debt due to the Government from— (*Amended 24 of 2012 s. 12*)
 - (a) if the notice served under subsection (3) or (4) has not been registered with the Land Registry under subsection (7), the person on whom the notice is served; or
 - (b) if the notice served under subsection (3) or (4) has been registered with the Land Registry under subsection (7), the person who is the owner of the relevant part of the building—

- (i) as at the date of completion of the inspection if the Building Authority has carried out or has caused to be carried out the inspection mentioned in subsection (8)(a) only; or
 - (ii) as at the date of completion of the repair works mentioned in subsection (8)(b) if the Building Authority has carried out or has caused to be carried out the repair works, whether or not the Building Authority has also carried out or has also caused to be carried out the inspection mentioned in subsection (8)(a).
- (10) After a notice under subsection (3) or (4) (the *preceding notice*) has been complied with, a fresh notice in respect of the same window must not be served under that subsection before the expiry of 5 years after the date of the preceding notice.

30D. Appointment and duties of registered inspectors

- (1) Any person for whom a prescribed inspection or prescribed repair in respect of a building is to be carried out must appoint—
 - (a) a registered inspector to carry out the prescribed inspection; and
 - (b) a registered inspector to supervise the prescribed repair.
- (2) The registered inspector appointed under subsection (1)(b) may be the same registered inspector appointed under subsection (1)(a).
- (3) A registered inspector appointed under subsection (1)(a) must—
 - (a) carry out the prescribed inspection personally unless otherwise exempted by the regulations; and

- (b) comply generally with this Ordinance.
- (4) A registered inspector appointed under subsection (1)(b) must—
 - (a) provide proper supervision of the carrying out of the prescribed repair;
 - (b) ensure the repair materials to be used—
 - (i) are not defective and comply with this Ordinance; and
 - (ii) have been mixed, prepared, applied, used, erected, constructed, placed or fixed in the manner required for such materials under this Ordinance;
 - (c) ensure the building, for which the registered inspector is appointed to supervise the prescribed repair, is safe or has been rendered safe; and
 - (d) comply generally with this Ordinance.
- (5) A registered inspector appointed under subsection (1)(a) to carry out a prescribed inspection must— (*Amended 24 of 2012 s. 12*)
 - (a) notify the Building Authority of any case of emergency that is revealed during the course of the prescribed inspection; and
 - (b) if the prescribed inspection is carried out under section 30B(3), also notify the Building Authority of any building works—
 - (i) that have been or are being carried out in contravention of any provision of this Ordinance to—
 - (A) the common parts of the building;
 - (B) any external wall, roof or podium of the building (other than the common parts);

- (C) any yard or slope adjoining the building; or
 - (D) any street on which the building fronts or abuts; and
 - (ii) that are identified during the course of the prescribed inspection. (*Amended 24 of 2012 s. 12*)
- (6) A registered inspector appointed under subsection (1)(b) to supervise a prescribed repair must notify the Building Authority of any case of emergency that is revealed during the course of supervision of the prescribed repair.
- (7) A registered inspector appointed under subsection (1)(a) or (b) must not act, at the same time, as a contractor to carry out the prescribed repair for the same part of the building.
- (8) If a registered inspector appointed under subsection (1)(a) or (b) becomes unwilling to act or unable, whether by reason of termination of appointment or for any other reason, to act, the person for whom the prescribed inspection or prescribed repair is to be, or is being, carried out must appoint another registered inspector to act instead of the original registered inspector.
- (9) A registered inspector appointed under subsection (1)(a) is not allowed to nominate another registered inspector to act in his or her stead even though he or she is temporarily unable to act by reason of illness or absence from Hong Kong.
- (10) If a registered inspector appointed under subsection (1)(b) is temporarily unable to act by reason of illness or absence from Hong Kong, he or she may nominate another registered inspector to temporarily act in his or her stead for the period of illness or absence.
- (11) In this section, a reference to an inspection or repair of a building does not include an inspection or repair of the windows in the building.

30E. Appointment and duties of qualified persons

- (1) Any person for whom a prescribed inspection or prescribed repair in respect of a window in a building is to be carried out must appoint—
 - (a) a qualified person to carry out the prescribed inspection; and
 - (b) a qualified person to supervise the prescribed repair.
- (2) The qualified person appointed under subsection (1)(b) may be the same qualified person appointed under subsection (1)(a).
- (3) If a qualified person appointed under subsection (1)(a) is a natural person, the qualified person must—
 - (a) carry out the prescribed inspection personally; and
 - (b) comply generally with this Ordinance.
- (4) If a qualified person appointed under subsection (1)(a) is not a natural person, a representative of the qualified person as prescribed in the regulations must—
 - (a) carry out the prescribed inspection personally; and
 - (b) comply generally with this Ordinance.
- (5) A qualified person appointed under subsection (1)(b) must—
 - (a) provide proper supervision of the carrying out of the prescribed repair;
 - (b) ensure the repair materials to be used—
 - (i) are not defective and comply with this Ordinance; and
 - (ii) have been mixed, prepared, applied, used, erected, constructed, placed or fixed in the manner required for such materials under this Ordinance;

- (c) ensure the window, for which the qualified person is appointed to supervise the prescribed repair, is safe or has been rendered safe; and
 - (d) comply generally with this Ordinance.
- (6) If a qualified person appointed under subsection (1)(a) or (b) is a registered general building contractor or registered minor works contractor, the qualified person may also act as a contractor to carry out the prescribed repair.
- (7) A qualified person appointed under subsection (1)(a) or (b) must notify the Building Authority of any case of emergency that is revealed during the course of the prescribed inspection or supervision of the prescribed repair (as the case requires).
- (8) If a qualified person appointed under subsection (1)(a) or (b) becomes unwilling to act or unable, whether by reason of termination of appointment or for any other reason, to act, the person for whom the prescribed inspection or prescribed repair is to be, or is being, carried out must appoint another qualified person to act instead of the original qualified person.
- (9) A qualified person appointed under subsection (1)(a) or (b) is not allowed to nominate another qualified person to act in his or her stead even though he or she is temporarily unable to act by reason of illness or absence from Hong Kong.

30F. Duties of registered general building contractors and registered minor works contractors

A registered general building contractor or registered minor works contractor appointed to carry out a prescribed repair must ensure the part of the building for which the contractor is appointed to carry out the prescribed repair has been rendered safe.